THE STATE
versus
MAUD FADZAYI MUTAMBARA

HIGH COURT OF ZIMBABWE
CHIKOWERO J
HARARE; 14 & 17 July 2026

Assessors :Mr Mujaya
:Mr Kuwanda

Sentencing judgment

F Zachariah, for the State
P Bhasikiti with B Hatinahama, for the offender

CHIKOWERO J:

[1] The offender, a 29 year old female, was indicted for trial on one count each of the crimes of defeating the course of justice as defined in s 184(1) (a) and (e) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23]* and money laundering as defined in s 8(1), (2) and (4) of the Money Laundering and Proceeds of Crime Act [*Chapter 9:24*].

[2] Count one reads as follows:

> "….on 23rd of October 2024, and at Makombe and Associates Legal Practitioners… Mutare, the accused sold to Patricia Nago (nee Muvirimi) for the sum of US$35 000 a certain immovable property situated at Stand Number 953 Raheem Farm, Mutare, measuring approximately 200 square metres, which property was acquired with the proceeds of the crime of robbery committed by George Mupudzi and his accomplices. The accused sold the said property knowing that it was the subject of judicial proceedings for money laundering against herself at the Harare Magistrates Court under case number CRB HREP 7974/23, and investigations by the Criminal Investigations Department, Homicide Harare, against George Mupudzi, who was wanted by the police on a charge of robbery. By such conduct, the accused defeated or obstructed, or caused to be defeated or obstructed, the said judicial proceedings and criminal investigations, intending to defeat or obstruct the proceedings and investigations."

[4] The money laundering charge (count two) reads:

> "….on 23rd day of October 2024 and at Makombe and Associates Legal Practitioners….Mutare the accused unlawfully sold to Patriciah Nago (nee Muvirimi) for the sum of US$35 000 a certain immovable property situated at Stand Number 953 Raheem Farm, Mutare, measuring approximately 200 square metres, which property was acquired with proceeds of the crime of robbery committed by George Mupudzi and his accomplices. The said property was the subject of judicial proceedings for money laundering against the accused at the Harare Magistrates Court under case number CRB HREP 7974/23, and investigations by the Criminal Investigations Department, Homicide Harare in relation to George Mupudzi, who was wanted by the police on a charge of robbery. The accused sold the said property knowing, believing or having reason to suspect that it constituted proceeds of crime or had been acquired through unlawful activity, and did so for the purpose of concealing or disguising the illicit origin of the property or assisting George Mupudzi, a person involved in the commission of a serious offence, to escape the legal consequences of his acts."

[5] A statement of agreed facts was placed before us. We summarise the facts contained therein.

[6] George Mupudzi (Mupudzi) was the offender's boyfriend. On 21 August 2023 and at Harare Mupudzi, together with his accomplices, robbed one Bethel Jiri of cash in the sum of US$128 932. Mupudzi's share of the cash proceeds of the robbery was US$26 000. He gave this money to the offender.

[7] On 25 August 2023 the offender entered into an agreement of sale with one Beverley Naume Makina in terms whereof she purchased the immovable property mentioned at paras 3 and 4 of this judgment from the latter. The purchase price, which the offender paid in full, was the sum of US$29 000. The offender used the sum of US$26 000 given to her by Mupudzi as well as US$3000 of her own money to pay the purchase price. This rendered the piece of land in question property derived from the proceeds of the predicate crime of robbery. This led to the arrest of the offender and her subsequent arraignments before the Magistrates Court sitting at Harare on a charge of money laundering as defined in s 8(1) of the Money Laundering Act.

[8] On 23 October 2023 the offender, through her erstwhile legal practitioners, addressed a letter to the District Public Prosecutor at Harare Magistrates Court seeking a reconsideration of the decision to charge her with the crime of money laundering. In that correspondence, which was accompanied by her affidavit, the offender admitted receiving the sum of US$26 000 from Mupudzi to which she added US$3 000 to buy the piece of land that we now know. She denied

knowing that the money which she received from Mupudzi was proceeds of the crime of robbery. She was not involved in the robbery.

[9] On 16 February 2024 the charge of money laundering preferred against the offender was withdrawn before plea. However, investigations in the crime of robbery and the recovery of the proceeds of that crime continued.

[10] On 23 October 2024 and at Makombe and Associates Legal Practitioners, Mutare, the offender unlawfully sold all the right and interest in the immovable property in question to Patricia Nago for US$35 000. This means that she converted the tainted immovable property into cash thereby making the recovery of the proceeds of the crime of robbery by the law enforcement authorities more difficult. The offender knew that criminal investigations in respect of the robbery and the recovery of the proceeds thereof were in progress. She also knew that the immovable property constituted proceeds of crime liable to restraint and forfeiture under the Money Laundering Act because it had been acquired using the proceeds of the robbery committed by Mupudzi and his accomplices.

[11] The US$ 35 000 received by the offender from Nago has not been recovered.

[12] Paras 10 and 11 of the Statement of the Agreed Facts state:

> "10. By selling property and receiving the purchase price whilst fully aware that the property was tainted and was liable to recovery by the State, the accused intentionally converted the proceeds of crime into cash and placed the tainted property beyond the reach of law enforcement authorities, thereby committing the offences of money laundering and defeating or obstructing the course of justice.
> 11. The accused was not involved in the commission of the robbery. Her criminal liability arises solely from her receipt, possession, use, conversion and subsequent disposal of property constituting proceeds of robbery."

[13] The statutory penalty for the crime of defeating or obstructing the course of justice where such is constituted by a contravention of s 184(a) or (e) of the Criminal Law Code is a fine not exceeding level ten or imprisonment for a period not exceeding five years or both. According to the Criminal Procedure (Sentencing Guidelines) Regulations 2023 the presumptive penalty for this offence where it is not committed in aggravating circumstances is a level 4 fine.

[14] Section 8(8) of the Money Laundering Act records the penalty for the offence of money laundering in these terms:

> "(8) the offences referred to in subs (1), (2), (3) and (4) shall be punishable –
> (a) by a fine not exceeding five hundred thousand dollars (US$500 000) or not exceeding twice the value of the property involved or the gain derived by the offender, whichever is greater; or
> (b) by imprisonment not exceeding twenty-five years; or
> (c) both such fine and such imprisonment."

The Sentencing Regulations 2023 do not list the crime of money laundering. Accordingly, no guidelines are provided in the Sentencing Regulations for assessing an appropriate sentence to be imposed on an offender for the crime of money laundering. However, s 59(1) (a) (i) and (ii) of the Money Laundering Act provides that where a person is convicted of an offence in respect of which notice of an application for a benefit recovery order has been given in terms of s 58 of the same Act, the Court shall sentence the person for the offence by imposing a sentence of imprisonment that is wholly or partially suspended upon compliance with a benefit recovery order and any other penalty, if any, it may lawfully impose, such as a fine or community service order.

[15] Section 21(2) of the Sentencing Guidelines reads in relevant part:

> "21 Special Categories of offenders
> …
> (2) Where the offender is a female the court shall have regard to the following principles-
> (a) non-custodial sentences should, where possible, be considered in respect to… women with dependent children;
> (b) imprisonment in respect to female offenders should only be considered where the offender has been convicted of an offence which is serious or violent …
> (c) Where evidence is presented showing that the offender is a primary caregiver, then, the Court shall ascertain and take into account the effects of a sentence of imprisonment on the dependents if such a sentence were to be imposed."

The offender is female. She is the primary caregiver to her 7 year old child. She is a single mother. The whereabouts of the father are unknown. He is not contributing to the maintenance of the child. A custodial sentence would most likely reduce the child to destitution as well as depriving it of the mother's love and affection which is so critical in the child's formative years. Female offenders are generally treated more leniently than their male counterparts. They are less likely to re-offend, unlike male offenders.

[16] In *S* v *Allegrucci* 2002(1) ZLR 647(H) SIBANDA J, with the concurrence of CHEDA J, said at 677C:

> "In my respectful view, what should be of paramount consideration and importance are the individual accused and the facts of the case in respect of his conduct. The question in my submission ought to be, does his conduct subsequent to the commission of the offence, signify that of a contrite, repentant and reformed individual. If all the relevant factors consistent with the above factors are found to be present then the individual ought to be rewarded by a non-custodial sentence."

[17] We have already referred to some of the factors personal to the offender. We agree with both Counsel that the offender is *contrite,repentant* and is a reformed individual. She pleaded guilty to both counts. A plea of guilty is a mitigating factor of substance which must result in a meaningful reduction in the sentence. See *S* v *Katsaura* 1997(2) ZLR 102 (H) at 104H-105G, *S* v *Buka* 1995 (2) ZLR 130(S) at 134H -136A and *S* v *Dube and Anor* 1995(2) ZLR 321 (S) at 327G-328F.

[18] In addition to it being evidence of contrition, the plea of guilty means that the offender has saved the Court's time and the State unnecessary expense. But for the plea of guilty, indications are that the trial could have been lengthy regard being had to the fact that the State had lined up six witnesses. The offender is deserving of substantial credit for positively contributing to the speedy operation of the criminal justice system. Valuable time became available to this court to deal with other cases.

[19] Other incidents of the offender's cooperation with the authorities are these. She is still willing to testify against Mupudzi in the robbery case despite what she has gone through in the wake of accepting his US$26 000 robbery cash gift. Before being called upon to plead to the indictment, she had already initiated efforts to disgorge herself of the benefit which accrued to her from commission of the two crimes in this case. She offered a commercial stand to the State. Ms Zachariah confirmed the making of the offer. Counsel explained that the reason why the offer was not accepted was that, after an evaluation by the State, it turned out that the value of that commercial stand fell below the sum of US$ 35 000 mentioned in the indictment. Even then, the offender has consented to the State's application for a benefit recovery order. Both Counsel have urged us to suspend a portion of the imprisonment sentence to be imposed on the offender on count two on condition that she complies with the benefit recovery order. That way, one of the

purposes of the Money Laundering Act, namely that crime should not pay, would have been attained.

[20] The offender is 29 years old. She has a whole life ahead of her. She has been gainfully employed since March 2025. An effective imprisonment sentence would disrupt the process of rehabilitating the offender. That would be sentencing without purpose and objective. It benefits the society not at all. Indeed, it would likely defeat the purpose of the benefit recovery order by making it difficult for the offender to comply with that order. Were the Court to impose an effective imprisonment term it would likely contribute to ensuring that crime pays. We do not think that is in the interest of the administration of justice.

[21] She is a first offender. Besides being deserving of a lighter sentence by reason of that status, we are also inclined to impose such a sentence with the objectives of rehabilitation and deterrence in mind. We proceed on the basis that she is unlikely to re –offend because she has reformed. But the sentence that we will impose shall also have the effect of deterring the offender herself as well as the society at large.

[22] We agree with Ms Zachariah that there are aggravating circumstances in this case. The appellant has been convicted of two inherently serious offences. Money laundering undermines the integrity of the financial system. The offence enables offenders to disguise, conceal, and enjoy the proceeds of criminal activity. It frustrates the administration of justice by enabling criminals to integrate illicit wealth into the economic system. To inadequately punish offenders for the crime of money laundering tends to weaken public confidence in the criminal justice system. Equally, the crime of defeating or obstructing the course of justice in this case struck at the foundation of the rule of law. It impeded law enforcement authorities in discharging the functions of investigating and recovering proceeds of crime. Although the offender was not involved in the predicate offence of robbery she received the proceeds of that crime. She used the proceeds to acquire immovable property. Subsequently, she disposed of the same. She obtained the not insubstantial amount of US$ 35 000. She benefitted to that extent because the money has not been recovered. But for her spirited efforts to lose that benefit, coupled with the other weighty mitigating circumstances discussed in this judgement, we would not have hesitated to pass a stiff custodial sentence on the offender in respect of the money laundering charge. At the end of the day, we have agreed with both Counsel that the

circumstances of this offender, coupled with her conduct after the commission of the serious crimes, outweigh the aggravating circumstances. The justice of this case does not cry out for the passing of effective imprisonment sentences.

[23] In terms of the Criminal Law (Codification and Reform) (Standard Scale of Fines) Notice 2023 a level 4 fine is in the sum of US$100. As that is the presumptive penalty for the offence of defeating or obstructing the course of justice committed in mitigating circumstances, we will pass such a sentence on the offender in respect to count one. While this sentence appears to be generous we do well to recall that the same set of facts birthed both counts.

Sentence

Count one:- The offender shall pay a fine in the sum of US$100 or the equivalent thereof in the Zimbabwe currency at the prevailing interbank rate on the date of payment to the Registrar of the High Court at Harare in default of payment 6 months imprisonment.

Count 2:- 4 years imprisonment of which 2 years imprisonment is suspended on condition that the offender complies with the benefit recovery order by paying the sum of US$ 35 000 into the Recovered Assets Fund, Reserve Bank of Zimbabwe, Account Number 200010327 within 90 days of the issuance of the benefit recover order.

The remaining 2 years imprisonment is suspended for 5 years on condition that the offender does not within that period commit any offence involving the acquisition use, possession, concealment, disguise, conversion or transfer of proceeds of crime for which upon conviction the offender is sentenced to a term of imprisonment without the option of either a fine or community service.

CHIKOWERO J: ……

National Prosecuting Authority, State's Legal Practitioners
Mutendi Mudisi Shumba, Offender's Legal Practitioners